

ONTARIO
SUPERIOR COURT OF JUSTICE

IN THE MATTER OF THE ESTATE OF JACQUELINE LAST, Deceased

BETWEEN:

Glen Last

Applicant

– and –

Craig Last, personally and in his capacity as
joint Estate Trustee for the Estate of
Jacqueline Last and TD Canada Trust

Respondent

Frank Pinizzotto, for the Applicant

Craig Last, Self-Represented

HEARD: January 24, 2025

REASONS FOR DECISION

CHARNEY J.:

- [1] This Estate Application was originally issued in April of 2023, and has been the subject of several previous motions and court orders.
- [2] Jacqueline Last (“Jacqueline”) was the mother of the Applicant Glen Last (“Glen”) and the Respondent Craig Last (“Craig”). She died on November 16, 2021, at the age of 79. She was predeceased by her husband. Glen and Craig were her only children.
- [3] The Applicant brings this motion for an Order striking out Craig’s Notice of Appearance, and an Order that Craig’s share of the Estate be reduced by \$749,751, which is one-half the total of the withdrawals and transactions which the Applicant alleges Craig improperly took from the Deceased’s bank account prior to her death. The Applicant also seeks miscellaneous costs and an interim distribution from the Estate in the amount of \$350,000

(the balance remaining in the Estate). Finally, the Applicant seeks an Order that Craig make payment to Glen in an amount equal to the shortfall, if any, between \$749,751 and the net payment received by Glen as a beneficiary of the Estate.

Facts

- [4] On March 5, 2015, Jacqueline executed a Last Will & Testament, pursuant to which Glen and Craig were named as joint Estate Trustees and equal beneficiaries. Also on March 5, 2015, Jacqueline executed a Continuing Power of Attorney for Property and Power of Attorney for Personal Care, which named Glen and Craig as joint Powers of Attorney.
- [5] On March 26, 2015, Jacqueline was involved in a serious automobile accident. As a result of the accident Jacqueline was deemed to have suffered “catastrophic impairment”, including cognitive impairment. She required 24 hour attendant care as a result of the accident.
- [6] On June 16, 2016, Glen and Craig, acting as their mother’s Power of Attorney, signed a retainer agreement with Thompson Rogers LLP to commence a medical malpractice case against the hospital where Jacqueline received medical care after the car accident.
- [7] On November 3, 2016, Jacqueline signed a “Continuing Power of Attorney for Property”, and a “Continuing Power of Attorney for Personal Care”, appointing only Craig as the Power of Attorney.
- [8] Jacqueline’s lawsuit against the hospital was settled in December 2017 for \$792,936, with \$22,936 to be paid to Craig to be held in trust for Jacqueline, and the balance of \$770,000 to paid into a structured annuity to be paid to Jacqueline over a five year period at approximately \$13,575 per month, with the insurer retaining a reversionary interest in the net settlement.
- [9] In the fall of 2016, Craig, acting as Jacqueline’s Power of Attorney, sold her home in Brampton and purchased a property in Muskoka, where Jacqueline moved and lived with Craig and his family.
- [10] Jacqueline died on November 16, 2021.
- [11] In February 2022, Craig and Glen began the process of administering Jacqueline’s Estate. They retained the law firm of Ferguson, Deacon, Taws LLP (“FDT”) to assist with the probate process.
- [12] On April 22, 2022, FDT wrote to CIBC Bank (“CIBC”) and TD Canada Bank (“TD”) in order to inquire as to the balance of Jacqueline’s bank accounts as at the date of her death, the balance as at current date, and to request information regarding any loans or investment accounts that she had.

- [13] On May 2, 2022, CIBC informed FDT that at the date of death, Jacqueline had 2 accounts with CIBC and no investments or certificates: a Chequing account with a balance of \$100.41 and a Savings account with a balance of \$68.38.
- [14] On June 3, 2022, TD informed FDT that, at the date of her death, Jacqueline held the following accounts and credit products with their branch:
- a. Tax Free Savings Account with a balance of \$75.19;
 - b. Personal Deposit Account with a balance of \$70.46;
 - c. Personal Deposit Account with a balance of \$44.46;
 - d. Personal Deposit Account with an overdraft of \$5,425.11;
 - e. Personal Deposit Account with no balance as of the date of death;
 - f. Home Equity Line of Credit with a credit balance of \$101,338.98.
- [15] The Applicant believes that, in addition to these bank accounts, Jacqueline's Estate should have had the following assets at the time of her death:
- a. Muskoka home (less \$101,338 TD line of credit)
 - b. MVA settlement: approximately \$624,000 (based on \$13,000 per month between November 2017 to November 2021)
 - c. Kodak Life Insurance: \$22,150
 - d. Sun Life Financial: \$24,675
 - e. Nissan Truck: approximately \$20,000
- [16] The Applicant believes that, prior to her death, Jacqueline should have had a substantial cash flow by virtue of the settlement payment. He asserts that, due to Craig's mismanagement of Jacqueline's assets, her finances were depleted or overdrawn.
- [17] Glen sought an Order to appoint a Succeeding Estate Trustee to replace Craig and to administer the Estate. Glen also sought an Order to require Craig to pass formal accounts both in his capacity as Power of Attorney and in his capacity as *de facto* Estate Trustee.
- [18] On January 8, 2024, Woodley J. made an Order appointing Howard Gangbar of MSCH Financial Services Inc. as Estate Trustee for Jacqueline's Estate, replacing Craig and Glen as Estate Trustee. The house in Muskoka was vested in the Estate Trustee so that it could be sold. Glen Last was appointed as the litigation guardian on behalf of the Estate to pursue the Application as against Craig Last.

- [19] On July 19, 2024, the Muskoka house was sold for \$722,500. After deductions for hydro arrears, unpaid taxes and the outstanding balance (\$106,330) owing under the TD Line of Credit, the net proceeds from the sale were \$556,885. These funds were paid to the Estate Trustee, and the remaining balance is being held by the Estate Trustee pursuant to the Order of Woodley J.
- [20] On April 2, 2024, Christie J. made an Order requiring Craig to formally pass his accounts as Jacqueline’s attorney for property for the period of March 26, 2015 to November 16, 2021 by June 1, 2024. The Order further required Craig to “formally account for his management of the Estate assets and any assets held in trust for the period from November 17, 2021 to the date of delivering the accounting”.
- [21] On October 15, 2024, this matter returned before Healey J. Glen took the position that Craig’s Notice of Appearance should be struck out pursuant to Rule 60.12 for failure to comply with Christie J.’s Order (a position Glen reiterated in the proceedings before me).
- [22] Craig took the position that he was unable to comply with Christie J.’s Order based on mental health issues. He took the position that he was a party under disability and asked that a litigation guardian be appointed to act for him. Healey J. noted that there was no Notice of Motion or evidence to support Craig’s position. Healey J. directed Craig to Rule 7.03(10) and ordered that if Craig intended to bring a motion to have a litigation guardian appointed on his behalf he had to serve his motion record by November 22, 2024. Healey J. adjourned the application to January 2025.
- [23] Craig did not bring a motion to have a litigation guardian appointed on his behalf.
- [24] Craig has not complied with Christie J.’s Order. There has been no formal passing of accounts or accounting for the Estate assets.
- [25] Given Craig’s failure to pass the accounts, Glen reviewed the banking records for the period of March 26, 2015 to November 16, 2021 that were disclosed to him. He has identified over 1,800 transactions that he alleges can only be explained as Craig misappropriating Jacqueline’s assets for his own benefit. He alleges that Craig has misappropriated at least \$1,489,502 from Jacqueline.
- [26] There is approximately \$350,000 remaining in the Estate.

Glen’s Estimate of Misappropriated Funds

- [27] Between 2015 and 2021, Glen alleges that there was at least \$1,269,715.17 in unexplained bank transfers and e-transfers out of Jacqueline’s Bank Accounts. For the purposes of this Application, Glen has only included the transfers or e-transfers which he can trace as being directly received by Craig (\$125,150.00) or Craig’s mother-in-law (\$28,484.00). The balance of the unexplained bank transfers and e-transfers in the amount of \$1,116,081.17 (\$1,269,715.17 - \$125,125.00 - \$28,484.00) have been fully excluded from Glen’s calculations. Absent further disclosure and an accounting setting out the particular nature

of these bank transfers and e-transfers, Glen acknowledges that it is not possible for him to ascertain the total extent of Craig's misappropriation.

- [28] In addition to these bank transfers and e-transfers, Glen has calculated that between 2015 and 2021, Craig caused \$391,925.48 to be directly withdrawn from Jacqueline's Bank Accounts by way of cash withdrawals, bank drafts, and cheques (including at least \$15,599.49 which was withdrawn following Jacqueline's death).
- [29] Glen has calculated that Craig also used at least \$349,624.73 of Jacqueline's money to directly pay off credit cards and various lines of credit which did not belong to Jacqueline. The credit card charges include retailers such as marinas, sports and fishing related stores, hotels, rental cars, animal hospitals, men's clothing, large fuel purchases, and international purchases. There were more than \$21,000 in purchases from the LCBO and the Beer Store from 2015 to 2021.
- [30] The Banking Transactions show that, between 2015 and 2021, at least \$101,768.84 in payments were made to CIBC credit cards and CIBC loans, that at least \$152,997.08 was paid to Capital One, and that at least \$12,084.83 was paid to American Express. Between May 11, 2016 and April 27, 2017, at least \$48,430.00 was withdrawn from Jacqueline's Bank Accounts to pay down a line of credit held with TD Bank. However, at the time, Jacqueline had no pre-existing lines of credit.
- [31] On or about May 17, 2017, Craig caused a Line of Credit with TD Bank to be registered against title to the Muskoka property, with a credit limit of \$100,000.00. On the same day, \$98,500.00 was deposited into Jacqueline's TD Account. These funds remain unaccounted for and Glen believes that Craig made large purchases including a pontoon boat, an industrial CNC machine, snowmobiles, and ATVs at around the same time.
- [32] Craig failed to make the minimum monthly payments under the TD Line of Credit, causing it to fall into significant arrears. This resulted in TD Bank threatening Power of Sale against the Muskoka property after Jacqueline's death.
- [33] Glen personally paid off the arrears on the TD Line of Credit in order to bring it into good standing and prevent Power of Sale proceedings from moving ahead. Glen and his wife were required to refinance the mortgage on their home in order to do this. Although Glen has been reimbursed for the payments he made on account of the arrears, he has not yet been reimbursed for the legal fees which he incurred.
- [34] Based on a review of the credit card records, Glen has calculated that Craig has spent at least \$73,786.22 of Jacqueline's money on gambling or gambling related expenses. Craig acknowledges that he spent at least that amount on gambling; he claims that he is a "professional gambler" and that he used his own resources and that the income generated from gambling exceeded any funds that he withdrew from the account.
- [35] Glen has calculated that Craig has spent at least \$121,489.91 on account of "miscellaneous" transactions. He also alleges that Craig took the payout value for Jacqueline's car (\$26,000) and traded that car for a new car for himself.

- [36] Glen has provided detailed lists and charts setting out all of the challenged payments that he relies on to calculate the total amount that he claims are misappropriated funds (see, for example, the 48-page chart appended as Exhibit K to his affidavit dated September 25, 2024). These charts are all supported by the banking information and records appended to Glen's affidavit. Apart from certain charges that I will discuss below, I accept that Glen has proven, on a balance of probabilities, that Craig misappropriated approximately \$1 million from Jacqueline, during her lifetime or after her death.

Attendant Care for Jacqueline

- [37] Between September 2015 and June 2017, a numbered company operated as "Stay at Home Care" and owned by Craig's wife, Jaime Duckworth ("Jaime") submitted invoices totalling \$177,492 to Intact Insurance, for Jacqueline's 24 hour attendant care. The monthly invoices ranged from approximately \$5,000 to \$10,000 per month, depending on the number of hours claimed, although most were for \$9,900. Intact Insurance reimbursed these claims at a maximum of \$6,000 per month, and Stay at Home Care was paid a total of approximately \$114,962.17.
- [38] Glen has raised concerns regarding the legitimacy of these payments to Craig and Jaime. He suspects that Craig and Jaime hired caregivers to look after Jacqueline, or that Jacqueline was moved to a long-term care home. These suspicions are unsupported by evidence.
- [39] The evidence I have reviewed confirms that, after the accident, Jacqueline required 24 hour attendant care. This was one basis for the quantum of the settlement and the establishment of a structured settlement to cover future care costs. There are no other invoices for attendant care from other service providers or employees during the relevant time period.
- [40] There is no evidence that Craig and Jaime did not provide the attendant care that Jacqueline required and for which invoices were rendered and paid by Intact Insurance. Further, there is no evidence that the amount paid by Intact Insurance was unreasonable or out of line with the market costs of such care. Without evidence of fraud or misrepresentation, Craig and Jaime are not disentitled to these payments simply because they are relatives: *Henry v. Gore Mutual Insurance Company*, 2013 ONCA 480, at para. 45; *Pelletier v. Ontario*, 2013 ONSC 6898, at para. 416; *Rolley v. MacDonell*, 2018 ONSC 6517, at para. 369; *Rezai et al. v. Kumar et al.*, 2024 ONSC 3546, at para. 31.
- [41] Finally, these payments totalling \$114,962.17 were not made by Jacqueline, they were made by Intact Insurance. If these invoices were fraudulent, the funds would not be returned to the Estate, but to Intact Insurance
- [42] Glen also claims that Craig had previously been paid an additional \$125,000 in connection with attendant care for Jacqueline. This claim is based on a covering letter from Jacqueline's lawyer dated September 20, 2018, which stated "Enclosed please find our trust cheque in the amount of \$46,311.50, representing settlement funds after payment of \$770,000.00 into a structured annuity. We confirm that we have advanced you the sum of

\$125,000 for attendant care pending settlement”. The letter also references a Direction which was executed on December 6, 2017.

- [43] That Direction instructed Jacqueline’s lawyer to settle her motor vehicle accident claim. The Direction states that the \$125,000 was previously paid “on receipt of invoices for services provided”.
- [44] This \$125,000 was not included in Glen’s total for misappropriated funds. In any event, this amount was paid “on receipt of invoices for services provided”, which counters any suggestion that it was misappropriated.
- [45] These invoices and payments are significant because Craig claims that he and Jaime continued to provide Jacqueline with attendant care while she lived with them in Muskoka after the settlement in December 2017.
- [46] While Craig failed to provide the accounting ordered by Christie J., I am prepared to accept that Craig and Jaime continued to provide Jacqueline with the same level of attendant care from December 2017 until her death in November 2021, and should be compensated on the same terms.
- [47] Even without the benefit of invoices or a formal accounting, I am prepared to find that this would amount to \$6,000 per month for the period between December 2017 (the date of the settlement) and November 2021 (the date of Jacqueline’s death), or \$282,000 (47 months X \$6,000). This conclusion is based on the fact that \$6,000 per month was the amount paid by Intact Insurance for the period prior to December 2017.

Analysis

- [48] The Applicant contends that Craig’s Notice of Appearance should be struck under Rule 60.12 for his failure to comply with an interlocutory order, in particular, Christie J.’s Order of April 2, 2024, requiring Craig to formally pass his accounts.
- [49] While I have considerable sympathy for the Applicant’s position on this issue, it is not necessary for me to address this issue. Even if I admit the material filed by Craig on this Application, Craig has not met his obligation to provide the accounting necessary to meet most of the concerns raised by Glen.
- [50] A trustee has an obligation to keep proper books of account and must at all times be in a position to prove that he or she administered the trust prudently and honestly and to give full information whenever required: *Wall v. Shaw*, 2018 ONCA 929, at para. 23; *Zimmerman v. McMichael Estate*, 2010 ONSC 2947, at para. 31; *Antzon v. Rogovsky*, 2025 ONSC 915, at para. 53.
- [51] Craig’s failure to pass the accounts in accordance with Christie J.’s Order means that he is unable to answer most of the questions raised by Glen, and he must lose on the merits. In *Bellefeuille v. Zinn*, 2022 ONSC 5027, McCarthy J. stated, at paras. 21 and 25:

In sum, the Defendant was unable to provide a satisfactory accounting for the handling of Irene's funds during the attorney-ship. To the extent that Exhibit 8 constitutes an accounting, it is incomplete, unsupported, unsubstantiated, and unreliable...

It being unlikely that the funds can be traced or recovered, there is only one remedy available to achieve justice here: the Defendant must make good the funds that she has taken from Irene and for which she has been unable to properly account for. An award of damages for breach of fiduciary duty is entirely appropriate in the circumstances.

- [52] In the case at hand, Craig was ordered to pass his accounts by June 1, 2024. He failed to do so.
- [53] On December 2, 2024, Craig served the Applicant with a "Factum" in which he denied mismanaging the Estate or misappropriating funds when acting as Jacqueline's Power of Attorney. In this factum (which is really an unsworn affidavit) Craig explained that he was unable to comply with Christie J.'s Order to provide an accounting because all of the invoices and accounts were scanned and maintained on a laptop computer that was stolen.
- [54] Craig claims to have made over \$300,000 in repairs to the Muskoka property but has provided no invoices or other evidence to substantiate this claim. Glen's review of the banking records and credit card statements indicates that Craig made purchases from Rona, Home Depot, and Lowes in the amount of \$6,708.15. I am prepared to accept this amount as going to repairs of the Muskoka property and deduct it from the alleged misappropriation.
- [55] Craig also claims that Jacqueline's care came to approximately \$21,000 per month. He asserts that all credit card payments were for legitimate expenses related to Jacqueline's care, household expenses or other "authorized purposes". There are, however, no invoices or any other documents or details filed to support any of these assertions.
- [56] That said, as indicated above, I am prepared to accept that Jacqueline's attendant care between December 2017 and November 2021 must be valued at \$6,000 per month. Craig should receive credit for this amount.
- [57] Craig further asserts that one of the TD bank accounts was a joint account with both Jacqueline and his name on the accounts. He asserts that, as a joint account holder, he was entitled to use the funds in the account for his own purposes and does not have to account for his use of any of these funds.
- [58] When an adult child is made a joint bank account holder, there is a presumption of resulting trust, and the onus is on Craig to demonstrate that he was intended to be a recipient of the funds in the account rather than a trustee to facilitate the management of Jacqueline's financial affairs.

- [59] The Supreme Court of Canada explained the presumption of resulting trust in the case of *Pecore v. Pecore*, 2007 SCC 17, at paras. 20 – 25:

A resulting trust arises when title to property is in one party's name, but that party, because he or she is a fiduciary or gave no value for the property, is under an obligation to return it to the original title owner...

Advancement is a gift during the transferor's lifetime to a transferee who, by marriage or parent-child relationship, is financially dependent on the transferor...

In certain circumstances which are discussed below, there will be a presumption of resulting trust or presumption of advancement. Each are rebuttable presumptions of law... A rebuttable presumption of law is a legal assumption that a court will make if insufficient evidence is adduced to displace the presumption. The presumption shifts the burden of persuasion to the opposing party who must rebut the presumption...

The presumption of resulting trust is a rebuttable presumption of law and general rule that applies to gratuitous transfers. When a transfer is challenged, the presumption allocates the legal burden of proof. Thus, where a transfer is made for no consideration, the onus is placed on the transferee to demonstrate that a gift was intended... This is so because equity presumes bargains, not gifts.

The presumption of resulting trust therefore alters the general practice that a plaintiff (who would be the party challenging the transfer in these cases) bears the legal burden in a civil case. Rather, the onus is on the transferee to rebut the presumption of a resulting trust.

[Footnotes omitted]

- [60] In *Pecore*, the majority of the Supreme Court altered the historical presumption of advancement that applied in cases of gifts between spouses and gifts between a parent and child. Importantly for the purposes of this case, the Court held, at paras. 36 – 41, that the presumption of advancement that historically applied between a parent and a child would no longer apply between a parent and an adult child.
- [61] In reaching this conclusion, the Court noted, at para. 36, that “it is common nowadays for ageing parents to transfer their assets into joint accounts with their adult children in order to have that child assist them in managing their financial affairs”. The Court concluded:

There should therefore be a rebuttable presumption that the adult child is holding the property in trust for the ageing parent to facilitate the free and efficient management of that parent's affairs.

- [62] In this case Craig has not successfully rebutted the presumption of resulting trust, and I hold that he was named as a joint account holder as a trustee to help Jacqueline manage her financial affairs. This is consistent with his status as Power of Attorney for Property. Accordingly, he must account for any withdrawals from all of the bank accounts, including the joint account, but he has failed to do so.

Occupation Rent

- [63] Glen also claims occupation rent for the 23 month period in which Craig continued to live in the Muskoka house following Jacqueline's death: *Lima v. Ventura (Estate of)*, 2020 ONSC 3278, at para. 49; *Koutsovasilis v. Carreira*, 2024 ONSC 4736, at para. 171; *Calmusky v. Calmusky*, 2020 ONSC 1506, at para. 73. Occupation rent may be found owing when one of the beneficiaries continues to occupy the home after the deceased's death, thus denying the estate the opportunity to rent the property and earn income: *Lima*, at paras. 52 – 53.
- [64] Glen has provided a number of rental listings for properties which he claims are comparable to the Muskoka home. These other properties range from a waterfront ski chalet renting for \$4,500 per month to a more modest home renting for \$2,800 per month. Based on these comparable listings, he claims that the fair market value rent for the Muskoka property was \$3,250 per month, and argues that Craig should be required to pay \$81,075 (\$3,250 X 23) to the Estate.
- [65] Craig disputes the assertion that \$3,250 per month was the fair market rent for the property. He argues that the Muskoka property was located in a rural area with limited amenities. He proposes that a fair market rent would be closer to \$1,800 per month.
- [66] I am not prepared to accept Glen's estimate of fair market rent for the property. There is no suggestion that he is qualified to provide opinion evidence of fair market rent, or that he has done any analysis of the location or amenities available to the various properties he references as "comparable". The fact that he would include a waterfront ski chalet in his analysis of comparable properties puts into serious doubt the validity of his opinion on this issue.
- [67] Accordingly, I will accept Craig's admission that the Muskoka property could rent for \$1,800 per month, and I conclude that Craig's total occupation rent payable to the Estate should be \$41,400.

Conclusion

- [68] Glen has calculated the amount misappropriated from Jacqueline while she was alive or from her Estate to be approximately \$1,489,502. This total was calculated as follows:

Payments to Jaime's Numbered Company	\$114,962.71
Cash Withdrawals	\$391,925.48

E-transfers to Margaret Duckworth	\$28,484.00
E-transfers to Craig Last	\$125,150.00
Payments to Capital One Credit Cards	\$152,997.08
Payments to CIBC Visa	\$101,768.84
Payments to American Express	\$12,084.83
Payments to an unknown LOC predating TD LOC	\$48,430.00
Second Payment to unknown line of credit	\$34,343.98
Gambling	\$59,388.00
Hard Rock Hotel and Casino	\$10,388.22
Cash Withdrawals at time of OLG transactions	\$4,010.00
RadioWorld	\$3,276.37
Rogers Wireless	\$1,948.87
Large Costco purchases (6 trips)	\$13,930.89
Marinas, Powers Sport Shops and Fishing	\$39,315.41
Rona, Home Depot, and Lowes purchases	\$6,708.15
Muskoka Station Store	\$10,374.36
LazyBoy Furniture	\$2,598.32
Miscellaneous Unexplained Purchases	\$34,345.90
International Purchases	\$8,991.64
Jacqueline's Vehicle	\$26,000.00
Walmart	\$35,268.71
LCBO	\$21,190.65
Fast Food	\$7,674.63
Tim Hortons/Starbucks	\$2,885.13

Outstanding Balance on TD LOC	\$106,330.36
Unpaid Hydro Account	\$4,655.06
Unpaid Rent	\$80,075.00

Total: \$1,489,502.59

[69] In the absence of a formal accounting, it is impossible to calculate the precise amount that was misappropriated by Craig between 2015 and 2021. Given Craig's failure to comply with the Order of Christie J. and provide an accounting, it is appropriate to draw an adverse inference against Craig with respect to most of these bank transfers and other charges.

[70] That said, I have concluded that there is sufficient evidence in the record to support the following amounts, and I conclude that these amounts should be deducted from Glen's total:

Payments to Jaime's Numbered Company	\$114,962.71 ¹
Rona, Home Depot, and Lowes purchases	\$6,708.15
Unpaid Rent (\$80,075 - \$41,400)	\$38,675
Attendant care between December 2017 and November 2021:	\$282,000

Total: \$442,345.86

[71] Based on the findings set out above, Craig has been unable to account for \$1,047,156 (\$1,489,502.59 - \$442,345.86) appropriated from Jacqueline and the Estate. Fifty percent of that amount will be deducted from his share of the Estate.

[72] This Court Orders:

- a. Craig Last's Share of the Estate of Jacqueline Last is reduced by \$523,578.
- b. Howard Gangbar, of MSHC Financial Services Inc. (the "Estate Trustee") shall make an interim distribution of the Estate to Glen Last by March 31, 2025, with a balance held back for taxes and other expenses necessary to administer the Estate. The quantum of the interim distribution shall be in the Estate Trustee's sole discretion and shall be subject to the approval of an interim informal accounting and the execution of an interim release by Glen Last.

¹ As indicated above, even if this amount was not properly claimed by Craig and Jaime, it would not be returned to the Estate, but to the insurance company that made the payment for services provided.

- c. Paragraph 22 of the Order of Justice Woodley dated January 8, 2024, shall be varied in order to dispense with the need for Craig Last's written consent with respect to the distribution of the Estate and/or the administration of the Estate.
- d. Glen Last or the Estate Trustee may move for such further directions as may appear advisable or necessary with respect to the administration of the Estate.
- e. Craig Last shall make payment to Glen Last in an amount equal to the shortfall, if any, between \$523,578 and the net payment received by Glen Last as a beneficiary of the Estate, the amount of which shall be determined upon completion of the Estate Trustee's administration of the Estate.
- f. Glen Last may move for such further directions as may appear advisable or necessary with respect to his role as litigation guardian on behalf of the Estate, in relation to the balance of the within Application.

Costs

- [73] The Applicant seeks costs on a substantial indemnity basis in the amount of \$90,000.
- [74] This litigation was made necessary because of Craig's failure to comply with a court order and provide the accounting necessary for the Applicant and the Court to properly review Craig's management of Jacqueline's assets. Accordingly, this is an appropriate case in which to make an order for costs on a substantial indemnity basis.
- [75] Costs of the Application are fixed at \$90,000, inclusive of HST payable by Craig Last to Glen Last, within 30 days of the date of this Order.

Justice R.E. Charney

Released: March 4, 2025

CITATION: Last v. Last, 2025 ONSC 1407

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REASONS FOR DECISION

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